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CHAPTER 8: DEVELOPMENT EXACTIONS AND IMPACT FEES

8-10: ROAD IMPACT FEES

8-10-10: PURPOSE

This provision implements and is consistent with the Pitkin County Road Management and Maintenance Plan and the 20-Year Road Improvement Plan. Traffic-generating development is required to pay its equitable share of those capital improvements. The establishment of a system for the imposition of transportation capital expansion fees is to assure that development contributes its equitable share of the cost of providing, and benefits from, the provision of road capital improvements. The technical support and analysis upon which the road fee is based is the 2020 Transportation Impact Fee Study prepared for Pitkin County (the support study), which is incorporated into this Land Use Code by reference.

(Code repealed and reenacted (all sections) by Ord. No. 14-D, 2006, 07-05-08; § 8-10-10 (part) amended [Ord. 034-2020, 08-12-2020](#); Ord. 003-2020, 02-12-2020

8-10-20: EXEMPTIONS

The following types of activity or development shall be exempt from development exactions and impact fee payments. A development or activity exempted from one type of development exaction or impact fee shall still be subject to other types of development exaction or impact fees not listed in the exemption:

- (a) Development Plans Approved Prior to July 10, 2000 Still Within the Statutory Vesting Period as Set Forth in Chapter 2

If statutory vesting is determined, the property in issue shall not be subject to any road impact fee.

- (b) Any Property Determined by a Court of Law or the County to be Vested Under the Common Law of the State of Colorado.

The extent of any common law vesting and the applicability of the road impact fee requirements shall be made on a case-by-case basis by the County Attorney.

- (c) Redevelopment of Preexisting Use: Replacement Units and Remodeling

The redevelopment, replacement, or remodeling of a preexisting residential, commercial or tourist accommodation uses shall be exempted from development exactions and impact fee requirements for roads if they meet the following standards:

- (1) No Net Increase in Impacts

The applicant shall demonstrate that there is no net increase in any road impacts due to the redevelopment, replacement unit or remodeling.

(2) Replacement and Remodeling Exemption

If a residential, commercial, or tourist accommodation unit is being replaced remodeled, the exemption shall be limited to the floor area of the existing unit. Any additional floor area above the floor area of the existing unit shall be subject to development exactions and impact fees for roads.

(Code repealed and reenacted (all sections) by Ord. No. 14-D, 2006, 07-05-08; § 8-10-20 (part) amended [Ord. 034-2020, 08-12-2020](#))

8-10-30: GENERAL ROAD FEE

Traffic-generating development generates a need for capital improvements to County roads that is required to be mitigated through the payment of road fees. The road fee schedule is based on two classes of development: residential and non-residential. If the type of traffic-generating development proposed is not specified on the fee schedule, the fee applicable shall be the most comparable type of land use on the fee schedule, or the applicant shall be required to conduct an independent fee calculation study to determine the appropriate amount pursuant to Sec. 8-10-60.

(a) Payment of Fee

Pursuant to the requirements of this section, the fee shall be paid to the Fee Administrator prior to issuance of a building permit or development permit for any portion of the development subject to the road fee.

(b) Computed Separately for Amount of Development

The fee shall be computed separately for the amount of development covered by the permit if the building permit is for less than the entire development subject to the road fee.

(c) Change in Use

If the fee is paid for traffic-generating development because of a change in use, the fee shall be determined by computing the difference in the fee schedule between the proposed use and the existing use.

(d) Expansions of Area

If the fee is required to be paid for traffic-generating development because of expansion of an existing use, the fee shall be determined by computing the

difference in the fee schedule between the proposed expansion and the existing use.

(e) Run with Land

The obligation to pay the fee shall run with the land.

(Code repealed and reenacted (all sections) by Ord. No. 14-D, 2006, 07-05-08; § 8-10-30 (part) amended [Ord. 034-2020, 08-12-2020](#))

8-10-40: ROAD FEE SCHEDULE

Any person who proposes traffic-generating development, except those exempted or conducting an independent fee calculation pursuant to Sec. 8-10-60, shall pay a transportation capital expansion fee.

For residential development the impact fee shall be in accordance with the following calculations, as outlined in the support study:

$$\begin{array}{r} 0.0017 \times \text{proposed heated floor area (sf)} + 3.1123 = \\ \text{X weekday vehicle trip ends per dwelling unit} \\ \\ \text{X weekday vehicle trip ends per dwelling unit} \\ \times \\ 0.54 \text{ adjustment factor for inbound trips, including commuting adjustment} \\ \times \\ 2.75 \text{ average miles per trip} \\ \times \\ 1.14 \text{ trip length adjustment factor for residential development} \\ \times \\ \$602.74 \text{ growth cost per VMT} \\ = \\ \text{transportation capital expansion fee} \end{array}$$

By way of example, the table below provides fee calculations in 1,000 sf increments as well as the fee schedule for non-residential development.

TABLE 8-1	
Impact Fees by Residential Floor Area	
Square Feet of Heated Space	Impact Fee
1,000	\$4,908
2,000	\$6,642
3,000	\$8,377
4,000	\$10,111
5,000	\$11,846
6,000	\$13,581
7,000	\$15,315
8,000	\$17,050
9,000	\$18,785
10,000	\$20,519
11,000	\$22,254
12,000	\$23,989
13,000	\$25,723
14,000	\$27,458
15,000 & Larger	\$29,193

TABLE 8-2	
Impact Fees for non-residential development (per 1,000 square feet of floor area, except lodging)	
Development Type	Impact Fee
Industrial	\$3,699
Retail/Restaurant	\$11,262
Office	\$7,264
Hotel (per room)	\$6,235
Motel (per room)	\$2,498

The above fee schedules are administratively adjusted annually (by Code Provision) based on CPI. Click below to access the

current fee schedule:

**2026 Residential Road Impact Fee Worksheet – Effective
01/01/2026**

**2026 – Non Residential Road Impact Fees Worksheet – Effective
01/01/2026**

(Code repealed and reenacted (all sections) by Ord. No. 14-D, 2006, 07-05-08; § 8-10-40 (part) amended [Ord. 023-2009, 09-23-2009](#))

8-10-50: ANNUAL ADJUSTMENT

Beginning in 2010, at the end of each year the transportation impact fee schedule shall be adjusted to account for construction cost inflation, pursuant to the provisions of this section. On January 1 following each calendar year during which the fee schedule was not comprehensively updated based on an update of the study, an adjusted fee schedule shall become effective. The County shall make the adjusted transportation impact fee schedule publicly available. The County shall calculate adjustments to the impact fee rates by multiplying them by a ratio based on Denver-Aurora-Lakewood CPI-U from the preceding year.

(Code repealed and reenacted (all sections) by Ord. No. 14-D, 2006, 07-05-08; § 8-10-50 (part) amended [Ord. 23-09, 09-23-09](#); [Ord. 034-2020, 08-12-2020](#))

8-10-60: INDEPENDENT FEE CALCULATION

(a) Applicability

The fee established in this section 8-10-60 may be computed by the use of an independent fee calculation study pursuant to the procedures of this Sec. 8-10-60 if:

- (1) The Fee Administrator determines that the land development activity proposed is not one of the types listed on the fee schedule and is not comparable to any land use on the fee schedule; or
- (2) The applicant believes it can be demonstrated that the nature, timing or location of the proposed traffic-generating development make it likely that the impacts generated will cost substantially less to mitigate than the amount of the fee that would be generated by the use of the fee schedule; or
- (3) The proposed traffic-generating development is "transit oriented," located within one-half mile of an existing or proposed mass transit stop, and the applicant believes it can be demonstrated that the proposed

development will generate fewer traffic trips than assumed by the fee schedule; or

(4) The Fee Administrator determines that the nature, timing, or location of the proposed traffic-generating development make it likely that the impacts generated will cost substantially more to mitigate than the amount of the fee that would be generated by the use of the fee schedule. It shall not be grounds for an independent fee calculation that the applicant believes that the applicant as an individual will not generate as many traffic trips as assumed by the fee schedules; or

(5) The property is located within the Village Commercial (VC) zone district.

(b) Applicant to Prepare

The preparation of the independent fee calculation study shall be the responsibility of the applicant and shall be submitted to the Fee Administrator.

(c) Portion Subject to Study

The independent fee calculation study may provide alternative data in one or both of two areas:

(1) The number of average daily traffic trips generated by the land use types in the proposed development; and/or

(2) The average trip length in miles on County roads.

(d) Qualifications for Study

The independent fee calculations may include independent sources, provided that:

(1) The independent source is an accepted standard source of transportation engineering or planning data or information.

(2) The independent source is a local study of trip characteristics carried out by a qualified traffic planner or engineer pursuant to an accepted methodology of transportation planning or engineering.

(3) The "percent new trips" factor used in the independent fee calculation study shall be based on actual surveys conducted in Pitkin County.

(e) Standards

To qualify for an independent fee calculation, the applicant shall demonstrate that it is reasonably likely that the use of the structure (by any person(s) subject to development exactions and/or impact fees) for public roads will result in the generation of fewer traffic trips than assumed by the fee schedule. If, on the basis of generally recognized principles of impact analysis it is determined the data, information and assumptions used by the applicant to calculate the independent fee calculation study satisfies the requirements of this section, the fee determined in the independent calculation study shall be deemed the fee for the proposed traffic-generating development. The adjustment shall be set forth in a Fee Agreement.

(f) Fee Agreement

The Fee Agreement shall be in a form approved by the County Attorney and shall memorialize the fee amount to be paid pursuant to the independent fee calculation study.

(Code repealed and reenacted (all sections) by Ord. No. 14-D, 2006, 07-05-08; § 8-10-50 (part) amended [Ord. 034-2020, 08-12-2020](#))

8-10-70: CREDITS

(a) Prior Road Mitigation for System Improvements

Any person initiating traffic-generating development may apply for a credit against traffic fees otherwise due, for any contribution, payment, construction or dedication of land for any system improvements on a County road. No credits shall be provided for project-related improvements. Prior road mitigation for system improvements shall be credited against the road fee contained in this provision as follows:

(1) Credit Is an Offset Against Fees Owed

The person initiating traffic-generating development shall be required to pay the difference between the road fee required by this provision and the prior mitigation. There shall be no entitlement to any refunds for fees paid in excess of the current fee schedule.

(2) Calculation of Credit

Credit shall be in an amount equal to the value of the contribution or payment at the time it was made to Pitkin County, the costs of road construction at the time of its completion, or the fair market value of the land dedicated at the time of dedication. An adjustment for inflation shall then be applied to the credit at the annual CPI rate.

(3) Apportionment of Credit

If road mitigation for system improvements was performed for a subdivision as a whole, then any credits shall be applied as follows:

- (1) The credit for the road mitigation performed shall first be applied to any existing development in the subdivision and/or planned unit development; and
- (2) Any remaining credit shall be apportioned equally among the remaining undeveloped lots or parcels.

(b) No Credit If No Payment

There shall be no credit for any road mitigation required through a development approval unless the property owner, or the property owner's predecessor in interest, actually provided the mitigation prior to July 10, 2000.

8-20: ROAD SYSTEM DEDICATIONS

[Reserved]

8-30: EMPLOYEE HOUSING IMPACT FEE

8-30-10: INTENT

The purpose of the employee housing impact fee is to require the applicable development to defray the cost of employee housing by mitigating the impacts of development to the employee housing inventory managed or controlled by Pitkin County or its housing designee, the Aspen/Pitkin County Housing Authority (APCHA). All provisions of Section 8-30 are self-executing and severable.

The employee housing impact fee constitutes a law of general applicability of Pitkin County and as such shall be applicable to all property in unincorporated Pitkin County. The calculation of the fee shall discriminate between different types of development and the intensity of the development as reflected in the size of the improvements as measured, where appropriate, through the square footage of heated floor area. Concerning residential development, a further distinction will be made between local resident occupancy and non-local resident occupancy.

Authority for this impact fee is found in the laws of the state of Colorado and in particular in C.R.S. § 29-20-104.5.

Payment of any applicable impact fee will occur prior to the issuance of a building permit or the change of use of a property that increases employee generation pursuant to Section 2-40-130. Development shall mitigate the following percentage of impact:

Residential local occupancy and non-local occupancy 100%

Commercial 100%

Tourist/Lodge accommodations 100%

Unclassified development 100%

(Code repealed and reenacted (all sections) by Ord. No. 14-D, 2006, 07-05-08; § 8-30-10 amended (part) Ord. 27-07, 11-14-07) Ord. 003.2020, 02-12-2020; [Ord. 034-2021, 08-11-2021](#)

8-30-20: CALCULATION OF THE FEE—COST OF HOUSING

The impact fee shall be determined for development activity as the product of the cost of housing an employee and the number of employees generated by the development activity.

(a) Affordable Price. The cost to house an employee shall be determined by calculating the affordable price of housing for the target income class and the market price for housing units of the size typical of the employee housing inventory. The difference in these calculations shall be the basis of the cost to house an employee.

(1) Target Income for Pitkin County Employee.

The target income for employee housing is 80% of the area median income (AMI) for Pitkin County. The average household in Pitkin County, as reported by the US census is 2.09 people. The AMI data utilized shall be for a two-person household as reported by the United States Department of Housing and Urban Development.

(2) Available Income.

The percentage of income attributable to housing costs shall be 30% of gross income. This 30% figure shall include all housing costs, including but not limited to principal and interest payments for a 30-year fixed interest loan, taxes, insurance, assessments and mortgage insurance.

(3) Interest.

Interest rates for a 30-year fixed rate loan shall be based upon inquiry to local lending institutions and adding a premium to that rate of 1%. This is to allow for housing purchases by individuals who cannot qualify for the best market rates available.

(4) Down Payment.

A down payment at the time of purchase will be assumed to be 5% of the total purchase price.

The factors listed above in paragraphs 1 through 4 will be used to calculate the maximum affordable purchase price for a housing unit by a two-person household earning the target income amount.

(b) The Market Price of Unrestricted Housing. The market price of free-market housing shall be based upon the following enumerated factors.

(1) Sales Data. The market sales data for residential properties shall be tabulated on a per square foot basis of heated floor area. Sales data shall be utilized from the Pitkin County Assessor's Office. This data shall be collected for all areas of Pitkin County including municipalities. The sales data for the three most recent calendar years will be utilized to calculate a rolling median value of retail sales. Excluded from this data will be sales of unheated floor area, sales of restricted properties, sales of fractional ownerships, sales of mobile homes, sales of mixed commercial/residential structures, sales of

properties with more than one residence and sales involving properties of more than 5 acres.

(2) Unit Size. The average size of an employee housing unit will be assumed to be 1100 ft.² of heated area.

(3) Market Price. The market sales of residential properties calculated on a per square foot of heated floor area basis shall be multiplied with the average size of an employee unit to yield the market price of a residential unit of 1100 ft.² of floor area.

(c) Cost of Employee Housing.

(1) To the unit market price of unrestricted housing will be added a 10% administration fee. The 10% calculation shall be based upon the difference between market price and affordable purchase price for an 1100 square foot unit. This fee will pay for the expenses in administering the employee housing program to utilize the collected impact fee. The difference between the adjusted total market price including the administration fee and the affordable price is the subsidy for a unit of employee housing. APCA data details an average of 1.75 employees per unit of housing. Therefore, the cost to house one employee is the level of per employee subsidy, or the cost to house an employee component of the impact fee.

(Code repealed and reenacted (all sections) by Ord. No. 14-D, 2006, 07-05-08; § 8-30-20 amended (part) [Ord. 034-021, 08-11-2021](#))

8-30-30: CALCULATION OF IMPACT FEE—RESIDENTIAL EMPLOYEE GENERATION

The employee generation calculation for residential development shall discriminate between local and non-local resident occupancy. Local residency shall be occupancy by a household or individuals whose legal residency has been established as the property to be developed. The non-local resident fee shall be collected for all residential development unless the property is restricted through a covenant limiting the occupancy of the residence in a manner to guarantee it is not being occupied by a non-local household or individuals.

Employee generation caused by residential development is calculated in terms of both construction activity and the use and maintenance of the completed residence.

(a) Construction Impacts.

Table 8-3 charts the residence size to number of permanent employees generated for the construction activity and the dwelling units needed to house these employees. This table displays the number of employees it takes to construct the unit and the

number of dwelling units required to house construction workers based on the size of house being constructed. Construction employees will require housing only during the construction period, but the average construction worker career is 40 years. The calculation of construction employee years is therefore divided by 40 to convert to needed housing. The employee equivalent is then divided by the number of employees per dwelling unit (1.75) to calculate the fraction of a dwelling unit needed to house the employees engaged in residential construction of homes of different sizes.

TABLE 8-3: CONSTRUCTION EMPLOYMENT AND NEED FOR HOUSING IN PITKIN COUNTY			
Unit Size	Employee Years	Permanent Employment	Dwelling Units
500	0.270	0.007	0.004
1,000	0.541	0.014	0.008
2,000	1.082	0.027	0.015
3,000	1.623	0.041	0.023
4,000	2.163	0.054	0.031
5,000	2.704	0.068	0.039
6,000	3.245	0.081	0.046
7,000	3.786	0.095	0.054
8,000	4.327	0.108	0.062
9,000	4.868	0.122	0.070
10,000	5.408	0.135	0.077
12,000	6.490	0.162	0.093

Table 8-3 reflects survey data, census data and data from APCHA.

(b) Use and Maintenance Impacts.

The calculation of use and maintenance activity as an employment generator utilizes survey data from property owners in Pitkin County. The data relates these impacts to the size of the residential development. The data also reflects a significant difference between whether a dwelling is used by a local resident or a non-local resident.

(1) The collected data is expressed by two separate equations, one for local resident occupancy and one for non-local resident occupancy.

$$\ln(y \text{ All Homes Other than Non-Locally Occupied}) = -4.64138 + (0.000328 * \text{Size in Sq.Ft.})$$

$$\ln(y \text{ Non-Locally Occupied Home}) = -4.64138 + (0.000328 * \text{Size in Sq.Ft.}) + 2.00514$$

(2) The exponential relationship is specified as follows:

$$y = -4.67138 e^{(0.000328 x) + 2.01}$$

Where y = employment and x = square footage

The exponential relationship above effectively describes employment as a function of home size for unit of 9,000 square feet and under. For units larger than 9,000 square feet, it is recommended that the ratios for the 9,000 square foot unit be applied on a proportional basis per 1,000 square feet. The results of applying this formula, as adjusted, to local occupancy homes and non-locally occupied homes is reflected in Table 8-4 below.

(d)

(e) Table : 8-4 (f) Modeled Relationship Between Home Size and Post Construction Employment			
Size	(g) Local	(h) Non-Locally Occupied	
(i) 5	(j) 0.011	(k) 0.082	
(l) 1	(m) 0.013	(n) 0.096	
(o) 2	(p) 0.018	(q) 0.134	
(r) 3	(s) 0.025	(t) 0.186	
Size	(u) Local	(v) Non-Locally Occupied	
(w) 4	(x) 0.035	(y) 0.258	
(z) 5	(aa) 0.048	(bb) 0.358	
(cc) 6	(dd) 0.067	(ee) 0.497	
(ff) 7	(gg) 0.093	(hh) 0.691	
(ii) 8	(jj) 0.129	(kk) 0.959	
(ll) 9	(mm) 0.179	(nn) 1.331	
10,000	0.199	1.479	
11,000	0.219	1.627	
12,000	0.239	1.774	
13,000	0.259	1.922	
14,000	0.279	2.070	
15,000	0.299	2.218	
(oo) Source: RRC			

(3) The formula to determine the impact fee amount for each specific residential development is as follows:

(a) For residential development of 9,000 square feet or less:

$$(1) \text{ Construction Employment for all Units} = \{[0.541 * (\text{Unit FT}^2 * .001)] \setminus 40\}$$

(2) Post-Construction Employment – Locally Occupied Unit =
Exponent [$-4.67138 + (0.000328 * \text{Unit FT}^2)$]

(3) Post-Construction Employment – Non-Locally Occupied
Home = Exponent [$-4.67138 + (0.000328 * \text{Unit FT}^2) + 2.00514$]

(4) Total Employees = Construction Employment + Post-
Construction Employment

- (b) For Units over 9,000 square feet the ratios of 0.179 for local
occupancy, and 1.331 for non-local occupancy shall be utilized.

(4) The calculation of the housing impact fee is development specific and
performed administratively. A preliminary calculation can be done utilizing the
link to the fee schedule below:

<https://www.pitkincounty.com/DocumentCenter/View/355/Affordable-Housing-Impact-Fee-Calculation-Sheet-XLS>

8-30-40: CALCULATION OF IMPACT FEE-COMMERCIAL EMPLOYEE GENERATION

The impact fee for commercial development or land use will vary based on size and type of commercial development. This interrelationship is demonstrated on Table 8-5. The number of employees generated for specific unit sizes as measured in square feet of floor area can be extrapolated from the data on this table. To determine the exact impact fee multiply the employee generation rate from Table 8-5 with the current cost to house a single employee as determined in Section 8-30-20.

TABLE 8-5: Employees Generated by Size of Development**Office - General**

Unit Size in sq. ft.	No. of Employees Generated	Unit Size in sq. ft.	No. of Employees Generated
1,000	4.5	10,000	45
2,500	11.25	15,000	67.5
5,000	22.5	20,000	90
7,500	33.75		

Office – Real Estate

Unit Size in sq. ft.	No. of Employees Generated	Unit Size in sq. ft.	No. of Employees Generated
1,000	5.9	10,000	59
2,500	14.75	15,000	88.5
5,000	29.5		
7,500	44.25		

Office – Non-Profit

Unit Size in sq. ft.	No. of Employees Generated	Unit Size in sq. ft.	No. of Employees Generated
1,000	3.8	10,000	38
2,500	9.5	15,000	57
5,000	19	20,000	76
7,500	28.5		

Retail – Guest Market

Unit Size in sq. ft.	No. of Employees Generated	Unit Size in sq. ft.	No. of Employees Generated
1,000	2.9	10,000	29
2,500	7.25	15,000	43.5
5,000	14.5	20,000	58
7,500	21.75	25,000	72.5

Service – Repair, Personal, Business

Unit Size in sq. ft.	No. of Employees Generated	Unit Size in sq. ft.	No. of Employees Generated
1,000	1.13	10,000	11.32

When

TABLE 8-5: Employees Generated by Size of Development

2,500	2.83	15,000	16.98
5,000	5.66	20,000	22.64
7,500	8.49	25,000	28.31

a

Restaurant/Bar

Unit Size in sq. ft.	No. of Employees Generated	Unit Size in sq. ft.	No. of Employees Generated
1,000	7.4	10,000	37
2,500	18.5	15,000	55.5

Government

Unit Size in sq. ft.	No. of Employees Generated	Unit Size in sq. ft.	No. of Employees Generated
1,000	3.9	10,000	39
2,500	9.75	15,000	58.5
5,000	19.5	20,000	78
7,500	29.25	25,000	97.5

(Code revised (all sections) by Ord. No. 14-D, 2006, 07-05-08; § 8-30-40 amended by Ord. 27-07, 11-14-07)

commercial development facility changes in use from one category of use to another more intensive category in terms of employee generation, an impact fee shall be imposed according to this section for the increase in employee generation.

8-30-50: CALCULATION OF IMPACT FEE—TOURIST/LODGE ACCOMMODATION EMPLOYEE GENERATION

- (a) The impact fee for tourist/lodge accommodation development or land use will vary based on the number of accommodation rooms to be developed. There are two types of rooms, historic/standard and luxury.
- (b) The formula to determine the impact fee amount for tourist/lodge accommodation development or land use is as follows:
 - (1) Number of rooms times employee generation rate of 0.3 employees per room for historic/standard rooms or 1.1 employees per room for luxury rooms.
 - (2) Number of employees times the cost of housing one employee as determined in section 8-30 -20.

8-30-60: CALCULATION OF IMPACT FEE—UNCLASSIFIED DEVELOPMENT

The employee housing impact fee calculation is based upon three different classes of development: residential, commercial and tourist/lodge accommodations. If the type of development proposed is not specified as one of these three classes of development, the fee applicable shall be calculated based on the most comparable type of development and land use category described herein. If a property owner believes that there is no appropriate comparison between the proposed development or land use and the three classes of development described or that the specific instance of unclassified development would generate employees at a significantly lower rate than indicated by the impact fee calculation, then the property owner may submit an independent fee calculation as described in section 2-40-130 to suggest an alternative impact fee. The impact fee shall be the number of employees times the cost of housing one employee as determined in section 8-30-20.

8-30-70: OPTIONS TO DEFRAID THE PAYMENT OF IMPACT FEES

In order to mitigate the impacts of development upon the employee housing capital facilities, a developer or property owner may be allowed to avoid full payment of the scheduled impact fee through one or a combination of the following events. These events shall include and be limited to the construction of deed restricted employee housing, the acquisition and deed restriction of existing residential housing units, or the dedication of real property to Pitkin County that will be used for the construction of employee housing. In no event shall the exercise of any of these three options cause a developer or property

owner to exceed the impact fee schedule with the value of any construction, acquisition or dedication. The decision of whether or not to accept an offered alternative to full payment of the impact fee is a discretionary decision of the Board of County Commissioners. The Board of County Commissioners may accept or reject such offer based upon any reasonable consideration including, but not limited to any of the following: the type and location of the development to be mitigated; location of the property that is offered; the physical condition of the offered property; the ability to utilize the property in the employee housing program; the need for the type of property offered:

(a) Construction Requirements for Employee Housing Units

Any employee housing units developed in lieu of payment of a full impact fee shall meet the following guidelines:

- (1) All construction must comply with all regulations and required permits of the Pitkin County Code.
- (2) Size and materials used in the construction of employee housing shall be specifically approved by either the Board of County Commissioners. All employee housing units constructed shall be ready for occupancy prior to the issuance of a Certificate of Occupancy for the free-market development for which the deed restricted housing is in mitigation.
- (3) A deed restriction to be recorded against the property shall be reviewed and accepted by the Board of County Commissioners and its County Attorney prior to acceptance of the unit for mitigation of development impacts and/or prior to issuance of a building permit for the unit.

(b) Requirements for Converted/Deed Restricted Units

Free-market units acquired in lieu of full payment of the scheduled impact fee shall meet the following requirements:

- (1) All units must be specifically approved for mitigation by the Board of County Commissioners. The grant of this acceptance will be at the discretion of the Board of County Commissioners considering factors including but not limited to the location of the units, physical quality of the housing units and cost of maintenance of the units.
- (2) The acquired and restricted units shall be ready for occupancy before the issuance of a Certificate of Occupancy for the constructed free-market development whose impact the deed restricted units mitigate.
- (3) Prior to acceptance, the deed restriction recorded against the converted units shall be approved by the Board of County Commissioners or its County Attorney.

(c) Dedication of Real Property

All real property proposed by a developer or property owner for dedication to Pitkin County in lieu of full payment of the scheduled employee housing impact fee, shall be specifically accepted by the Board of County Commissioners through enactment of a County ordinance. The Board of County Commissioners may reject or accept any offered real property based upon any reasonable consideration. Included in the criteria for consideration but not representative of all factors that may be considered by the Board of County Commissioners in accepting a real property dedication will be: the location of the property; the size of the property to accommodate development of employee housing; the existing zoning of the property; the environmental, topographic and soils condition of the offered property; and the presence of any infrastructure or utilities.

(d) Removal of Constructed Employee Housing

If the obligation of payment of the impact fee was satisfied through the construction of employee housing as provided in paragraph (a) above and the property owner wishes to eliminate that constructed employee housing, such a request may be made to the Community Development Department and determined by the Board of County Commissioners. If the removal of the employee housing unit is approved, then the property owner shall be responsible, prior to the unit's removal, for the payment of the impact fee originally satisfied by the constructed unit, at the rate of payment at the time of the unit's removal.

8-30-80: EXEMPTIONS AND CREDITS

(a) Exemptions from Payment of Scheduled Impact Fees

(1) Employee Housing

No employee housing impact fee shall be imposed on the construction of deed restricted employee housing as defined from time to time by the Board of County Commissioners.

(2) Replacement, Restoration or Remodel of Existing Units

No employee housing impact fee shall be charged for replacement or restoration for an improvement that was lost or damaged through fire, age or other event not precipitated by the owner of the property. This exemption shall extend only so far as replacement or restoration for the unit is being sought in its same location and at the same size. No employee housing impact fee shall be charged for remodel construction that does not increase the size of the residential structure if a fee for the existing residence was already paid. No exemption shall be recognized for expansion of an existing structure except for that portion for which a fee was

already paid. Therefore, if a fee was paid on the construction of a 10,000 square foot home and the home is expanded to 11,000 square feet, a fee on the additional 1,000 square feet will be owed in the amount of the difference in the fee for a 10,000 square foot home and an 11,000 square foot home.

(3) Structures of five thousand seven hundred fifty (5,750) square feet or less of heated space shall not be assessed an impact fee. Heated space shall be heated square footage calculated as all interior space measured interior wall to interior wall including all interior partitions. Multiple residential structures on one property shall be considered as one structure for fee calculation purposes.

(4) Agricultural structures and activity will not be assessed an impact fee. Any other structures or activities associated with or located on property with agricultural activity or structures will be subject to the terms of this Chapter.

(b) Credits

(1) Previous Payment and Exaction

(a) Any fee imposed by this Chapter shall be subject to offset and reduced to reflect all previous payments, exactions, dedications or other mitigation made in relation to the proposed use and development.

(b) The value of any payment, exactions, dedications or other mitigation made to Pitkin County shall be adjusted upward to reflect the present value not the value at the time of the original payment, exaction or dedication. This upward adjustment shall be based upon the annualized rate of inflation as published in the Consumer Price Index (Denver-Aurora-Lakewood CPI-W) as established by the United States Bureau of Labor Statistics. If this index should be discontinued, then reference will be to Denver-Aurora-Lakewood CPI-U, and if this is not available, then to CPI-W All Cities.

(c) If the previous dedication, contribution or exaction was made as a part of a larger approval, i.e., subdivision or PUD review process, then the previous contribution, dedication or exaction shall be apportioned between all the properties of the approved development for which the previous contribution, dedication or exaction was made.

(2) Change in Use

When the imposition of the employee housing impact fee is required due to a change in use, credit shall be recognized for any legally established use.

8-30-90: IMPACT FEE FOR SMALL ESTABLISHED COMMERCIAL BUSINESSES

(a) A “small established commercial business” (a commercial business that has eight (8) or fewer full time equivalent employees, that is less than five thousand (5,000) sq. ft. of floor area, and that has operated continuously as the same type of business with the same ownership, and in the same location in Pitkin County for a period exceeding twenty (20) years) that relocates and abandons an old facility and that constructs and owns a new facility to accommodate the same small established commercial business shall be required to pay only the employee housing impact fee that would be imposed by Section 8-30-40 on the amount of additional floor area by which the new facility exceeds the previously occupied facility.

(b) If a new facility is exempted in conformance with Section 8-30-80(a) above, and the use of the facility changes prior to occupancy of the new facility or within five (5) years of occupancy of the new facility, an impact fee shall be required for the new facility in accordance with the formula and computation of fees established in Section 8-30-40. The fee owed will be that in effect at the time of the change in occupancy.

(c) A business utilizing this provision for reduction in/or exemption from the impact fee shall be subject to periodic employee audits (not more than once every two years) which shall be undertaken by Pitkin County and which will be funded by the business. Any increase in full time equivalent employees documented by an audit will require the business to pay additional employee impact fees at 100% of the amount that would be imposed for the additional employees by utilizing the formula and computation of fees established in Section 8-30-40.

(Code repealed and reenacted (all sections) by Ord. No. 14-D, 2006, 07-05-08; § 8-10-60 (part) amended [Ord. 23-09, 09-23-09](#); [Ord. 003-2020, 02-12-2020](#)

8-40: PARKS/RECREATION/OPEN SPACE EXACTION – Repealed [Ord. 024-2021, 06-09-2021](#)

8-50: PARKS/OPEN SPACE/AGRICULTURAL PRESERVATION FEE

[Reserved]

8-60: TRAILS EXACTION

8-60-10: APPLICABILITY

The trails development exaction standards are applicable to new residential and commercial subdivisions and tourist accommodation developments.

8-60-20: INTENT

Pitkin County established a trails program to satisfy trails needs of residents and visitors. The program is intended to provide:

- (a) Trails for diversified segments of the population including: nordic skiers, mountain bike riders, road bike riders, hikers, horse back riders, fisherman, hunters, senior and handicapped citizens;
- (b) Recreational trails, commuting trails and dual purpose trails for recreation and commuting; and
- (c) Multiple access points to the United States Forest Service trails system and public lands.

8-60-30: TRAILS STANDARDS

(a) General

Pitkin County trails standards are based upon consideration of the Pitkin County Comprehensive Plan and adopted open space and trails plans.

(b) Standards

(1) Whenever a tract to be subdivided includes any part of a trail or trails designated on trail or master plans or historically used trails, the developer shall plat and grant public easements consistent with County Trail standards and specifications and in a location acceptable to the Board of County Commissioners.

(2) Whenever a tract of land is traversed by or abuts a river or creek, the developer shall plat and grant a public fishing easement to include the stream and the land area five feet (5') beyond the ordinary high water mark on the stream bank.

(Code repealed and reenacted (all sections) by Ord. 014-D-2006, Section 8-60-30 amended (in part) [Ord. 011-2022](#), 02-23-2022)

8-70: PUBLIC TRAIL FEES

[Reserved]

8-80: SCHOOL LAND DEDICATION STANDARDS

8-80-10: APPLICABILITY

Pursuant to C.R.S. 30-28-101 et. seq. , school land dedication standards shall be assessed upon all new subdivisions containing residential units within unincorporated Pitkin

County that are located within the boundaries of the Aspen School District or the Roaring Fork School District (RE-1).

8-80-20: INTENT

The Aspen and Roaring Fork School Districts require land for necessary school functions, which may include, but are not limited to, school buildings, support facilities, open space and recreation areas and housing for employees and their families. The purpose of this Section is to ensure that as development occurs within the School Districts and school enrollment grows, the current level of service provided to students can be maintained. This is accomplished by the adoption of standards for new subdivisions to provide land, or cash-in-lieu thereof to the County, for use by the School District. The standards are based on the number of students the development generates and the School Districts current level of service standard for land area provided per student.

8-80-30: ASPEN SCHOOL DISTRICT DEDICATIONS AND PAYMENTS

(a) Land Dedication Standards

For lands within the Aspen School District boundaries, school land dedications shall be assessed according to the following schedule:

TABLE 8-5: Aspen School District School Land Dedications	
Unit Type	Land Dedication Standard
Dormitory	0.0000 acres (0 sq. ft.)
Studio/1 Bedroom	0.0012 acres (52 sq. ft.)
2 Bedroom	0.0095 acres (416 sq. ft.)
3 Bedroom	0.0162 acres (707 sq. ft.)
4 Bedroom	0.0248 acres (1,081 sq. ft.)
5 Bedroom	0.0284 acres (1,236 sq. ft.)

(b) Cash-in-Lieu Payment Formula

For lands within the Aspen School District Boundaries, an applicant may make a cash payment in-lieu of dedicating land to the County, or may make a cash payment in combination with a land dedication, to comply with the standards of this Section. Because of the cost of subdivided land in Pitkin County, the School District and Pitkin County have decided to require payment of a cash-in-lieu amount that is less than the full market value of the land area that would result from application of these land dedication standards. Because there is not a single formula that works equally well for both small and large lots, two formulas have been established. Applicants may use the formula that results in the lesser of the two payment amounts. Regardless of that formula is chosen, any individual cash-in-lieu payment shall not be required to exceed \$4,260 for a single dwelling unit.

The formulas to determine the amount of the cash-in-lieu payment for each residential dwelling unit are as follows:

(1) Formula 1

Market value of land multiplied by the applicable land dedication standard multiplied by 0.33 equals the amount of the cash payment. For example, for a property having a market land value of \$100,000, on which a four bedroom house is proposed, the payment would be:

$$\$100,000 \times 0.0248 \times 0.33 = \$818.40.$$

(2) Formula 2

The market value of the land divided by the total number of square feet of land within the property equals the market value of one square foot of the property. The market value of one square foot of the property multiplied by the number of square feet of land required to be dedicated to the county equals the amount of the cash payment. For example, for a ten acre property having a market land value of \$1,000,000 on which a four-bedroom house is proposed, the payment would be:

$$\$1,000,000 / 43,560 \times 10 = \$2.30$$

$$\$2.30 \times 1,081 = \$2,486$$

(3) Current Market Value

Current market value means the value of a subdivided lot at the time of the cash-in-lieu payment, including site improvements such as streets and utilities, but excluding the value of residential dwelling units and other structures on the property. When more than one residential dwelling unit is to be built on a lot, then each unit shall be assigned its proportionate share of the current market value of the lot.

(4) Substantiation

Market value may be substantiated by a documented purchase price (if an arms length transaction nor more than two (2) years old) or other mutually agreed upon recognized means.

(5) Appraisal

In the event the developer and the County fail to agree on market value, such value shall be established by a qualified real estate appraiser acceptable to both parties. The developer shall pay for the appraisal.

(6) Mixed Use Developments

When the proposed subdivision contains a mix of residential, commercial, and other uses, the required dedication shall be based solely on the number of proposed residential dwelling units.

8-80-40: ROARING FORK SCHOOL DISTRICT DEDICATIONS AND PAYMENTS

(a) General Formula

Within the Roaring Fork School Districts, required land dedications or fees-in-lieu of land dedications for school purposes shall be based on the following formula:

Land area required per student x students generated per dwelling unit =
land dedication standard

(b) Land Area Required Per Student

In applying the general formula in subsection (a) above, the following requirements for land area per student shall be used:

TABLE 8-6: Roaring Fork School District Land Requirements per Student		
	Reasonable Capacity	Recommended Acreage
Elementary School	550	15.5
Middle School	600	26.0
High School	800	38.0
Totals	1950	79.
Total Ac./Student		.04077
Total Sq.Ft./Student		1,776

(c) Student Generation Rates

In applying the general formula in subsection (a) above, the following requirements for land area per student shall be used:

TABLE 8-7: Roaring Fork School District Student Generation Rates	
Single-Family	.49 student / dwelling unit
Multi-Family	.38 student / dwelling
Mobile Home, Trailer	.71 student / mobile home or trailer

(d) Land Dedication Requirements

Applying the factors listed in subsections (a) through (c) above results in the Roaring Fork School District school land dedication requirements shown below:

TABLE 8-8: Roaring Fork School District Land Dedication Requirements	
Single-Family	870 sq.ft. per unit or .020 ac.
Multi-Family	675 sq. ft. per unit or .015 ac.
Mobile Home, Trailer	1,261 sq. ft. per unit or .029 ac.

(e) Cash-in-Lieu of Land Dedication

At the discretion of the Roaring Fork School District, a developer of residential housing may make a cash payment in lieu of dedicating land, or may make a cash payment in combination with a land dedication. The formula to determine the cash-in-lieu payment is as follows:

Market value of land per acre * land dedication standard from subsection (d) above * no. of dwelling units = cash-in-lieu payment required.

8-80-50: PROCEDURES FOR LAND DEDICATION AND CASH PAYMENT

(a) Land Dedication

Lands to be dedicated to the County to fulfill the standards of this section shall be identified on the detailed subdivision plan and shall be dedicated to the County at the time of final subdivision plat approval.

(1) Acceptance

Acceptance of the lands to be dedicated shall be at the discretion of the Board of County Commissioners.

(2) Criteria

Prior to acceptance, the Board of County Commissioners shall consider the comments of the School District to determine whether the lands proposed to be dedicated are of adequate size and can be suitably developed for school purposes or whether the lands have the capability of being sold, with the proceeds being used for school purposes. The Board shall also consider the probable impacts on neighboring properties of the development of the land for school purposes. When the lands proposed to be dedicated are not adequate or suitable for school purposes and cannot feasibly be sold, the Board shall require a cash payment in-lieu of the land dedication.

(b) Cash-in-Lieu Payment

Payment of cash-in-lieu of a land dedication shall be made to the County prior to and on a proportional basis to the issuance of a building permit for residential dwelling units.

8-80-60: USE OF LAND AND USE OF FUNDS

(a) Land

All lands dedicated to the County pursuant to this section shall be held by the County for the Aspen School District or the Roaring Fork School District, as applicable, until such time as they shall be requested by the School District for school purposes.

(1) Maintenance

The applicable School District shall be responsible for the maintenance of said lands in a reasonable manner while they are being held by the County.

(2) Sale of Land

The Board of County Commissioners may, at the request of the applicable School District, sell lands that have been dedicated to the County pursuant to this section. The proceeds from the sale shall be transferred to the designated interest bearing account into which funds collected from payments in-lieu of school land dedications are transferred.

(b) Funds

All funds collected pursuant to this section shall be transferred by the building inspector to the finance director, for deposit in a designated interest bearing account.

(1) County Shall Hold Funds

The County shall hold the funds until such time as they shall be requested by the applicable School District for the acquisition of land for school purposes, or for other capital outlays or growth-related planning functions for education purposes, at which time they shall be released to the applicable School District.

(2) Administrative Fee

The County shall be entitled to retain one (1) percent of the funds collected to compensate the County for its administrative expenses of collecting the cash-in-lieu payments. Said administrative fees shall be

deposited in the County’s General Revenue Fund, to be expended as the County shall determine in its sole discretion.

(c) Use of Land or Funds for Housing

If the applicable School District decides that land or funds dedicated pursuant to this Section should be used for housing, then the School District shall place a deed restriction on those housing units, restricting their occupancy solely to employees of the applicable School District and their families. In the event the inventory of housing exceeds the applicable School District’s needs, the School Board may allow occupancy of the units through the Housing Authority.

(d) Periodic Review

In order to ensure that these land dedication standards are fair and represent the current level of service provided by the applicable School District, the formula and dedication schedule shall be reviewed by the County, together with the applicable School District, and amended as necessary within three (3) years of its effective date and every three (3) years thereafter.

8-90: PUBLIC TRANSPORTATION FEES

[Reserved]

8-100: HEALTH AND HUMAN SERVICES FEES

[Reserved]